

Mandatory Settlement Conference set for October 9, 2026 at 3:00 p.m.

Jury Trial set for October 23, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509919	SEARGEANT VS AIRBNB, INC., A DELAWARE CORPORATION	MOTION TO COMPEL ARBITRATION BY AIRBNB, INC., A DELAWARE CORPORATION

Tentative Ruling: The court must grant the petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement, or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-219.) This rule does not require the petitioner to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Id.*)

Forum & Delegation:

As a threshold matter, Airbnb argues this Court is not an authorized forum under the applicable Terms of Service that Annabel contractually agreed to. Airbnb also argues that the delegation clause applies such that the arbitrator should decide if the arbitration agreement is applicable. However, when a plaintiff challenges mutual assent, as is the case here, the Court must first determine whether there is an arbitration agreement. (See *Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 202-21 [issues of formation may not be delegated to an arbitrator].)

Federal Arbitration Act:

Defendant asserts the FAA applies. Plaintiff does not dispute this. The Agreement states, “This Arbitration Agreement evidences a transaction in interstate commerce and the Federal Arbitration Act governs all substantive and procedural interpretation and enforcement of this provision.” (Agreement, § 24.6.) As the Agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.App.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Company, Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535.)

Existence of arbitration agreement:

Under both federal and state statutes, the threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Assocs.* (1996) 50 Cal.App.4th 676, 684; See 9 U.S.C. §2; Code Civ. Proc., § 1281.) A party moving to compel arbitration can meet its “initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) For this initial burden, “it is not necessary to follow the normal procedures of document authentication.” [Citation.]” (*Id.* at 1058.) As a preliminary matter the trial court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity. (*Id.*)

Here, Defendant satisfied its initial burden of establishing the existence of a valid arbitration agreement by attaching the Agreement to Anderson’s declaration as Exhibit F. (*Condee, supra*, 88 Cal.App.4th at 218-219.) This shifts the burden to Plaintiffs, who **must offer admissible evidence** creating a factual dispute as to the agreement’s existence. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 [opponent must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent], emphasis added.)

Plaintiffs argue lack of mutual assent. Plaintiffs point out Anderson’s declaration fails to provide any admissible evidence illustrating that either of the email addresses in Exhibits A, G, or I belong to Annabel or Decedent. However, Plaintiffs’ argument misstates Airbnb’s burden. “The [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity.” (*Espejo, supra*, 246 Cal.App.4th at 1058.) Moreover, Plaintiffs fail to present any evidence to create a factual dispute, i.e., no declaration by Plaintiffs. Thus, Plaintiffs fail to meet their burden of creating a factual dispute. (*Iyere, supra*, 87 Cal.App.5th at 755.)

Delegation Clause:

The general rule is that the courts decide disputes about arbitrability unless the parties agree to delegate the issue of enforceability of arbitrability to the arbitrator. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892.) To be effective, the language “must be clear and unmistakable” and that there is no “contract defense such as fraud, duress, or unconscionability.” (*Id.* at 892.) This is a heightened standard of proof. (*Id.*)

The delegation clause here states, “If there is a dispute about whether this Arbitration Agreement can be enforced or applies to our Dispute, you and Airbnb agree that the arbitrator will decide that issue.” (Agreement, § 24.4.)

The Agreement’s delegation clause contains clear and unmistakable language that the parties intended to cover all disputes related to the Agreement.

The plaintiff must specifically challenge the delegation clause. (*Najarro v. Superior Court* (2021) 70 Cal.App.5th 871, 889.) Plaintiffs do not challenge the delegation clause.

Plaintiffs' arguments that the Arbitration Agreement's provision does not encompass the incident giving rise to this lawsuit must accordingly be decided by the arbitrator.

Severance in the Alternative:

In the alternative, Plaintiffs request the court to sever this action as to Airbnb only and allow the remainder of the civil suit to proceed against the remaining defendants. In reply, Airbnb states it does not oppose Plaintiffs' alternative request that the arbitrable claims be severed and the claims against the other defendants proceed separate in Court. (Reply., pg. 8:28-9:1.) However, this severance request needs to be addressed in a separate motion.

Plaintiff's Evidentiary Objection #1 to Declaration of Greg Anderson SUSTAINED.

Plaintiff's Evidentiary Objections 2-4 to Declaration of Greg Anderson OVERRULED.

Plaintiff's Evidentiary Objections 1-2 to Supplemental Declaration of Greg Anderson SUSTAINED.

Defendant Airbnb, Inc's Motion to Compel Arbitration and Stay Proceedings GRANTED.

The entire case is stayed, a status hearing re arbitration is set for February 19, 2027.

Case Management Conference is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603344	ISAAC VS EISENHOWER MEDICAL CENTER	DEMURRER ON COMPLAINT OF BYRON KENT ISAAC BY EISENHOWER MEDICAL CENTER

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to October 15, 2026. The parties are ordered to ***meet and confer via in person, teleconference or phone*** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- 1) Defendant vacate the hearing on the demurrer, and file an Answer;